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Pinkney, Poore, Richardson, Seigfried, Sokola, Sturgeon,
Walsh, Wilson; Reps. Burns, Griffith, Hilovsky, Lambert,
Morrison, Snyder-Hall, Yearick

DELAWARE STATE SENATE
153rd GENERAL ASSEMBLY

SENATE BILL NO. 86

AN ACT TO AMEND TITLE 29 OF THE DELAWARE CODE RELATING TO THE DELAWARE VOLUNTEER FIRE
SERVICE REVOLVING LOAN FUND.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF DELAWARE:

Section 1. Amend § 2721, Title 29 of the Delaware Code by making deletions as shown by strike through and
insertions as shown by underline as follows and by redesignating accordingly:

§ 2721. Delaware Volunteer Fire Service Revolving Loan Fund.

(a) A special fund appropriation account is hereby created in the Department of Finance, to be known as the
Delaware Volunteer Fire Service Revolving Loan Fund, hereinafter referred to as the Fund. Sums appropriated by the
General Assembly, received from any county of the State, or donated by any person or charitable organization to the Fund
shall be used to create a loan program to be administered according to guidelines and procedures developed by the
Delaware Council on Volunteer Fire Service to upgrade equipment and improve facilities that are essential to providing
adequate fire, rescue, emergency ~~medical~~ medical, and technical emergency response related service to Delaware
communities. Loan funds received by a county must be used on upgrading equipment and facilities located within that
county. Loan funds ~~shall~~ must not be made available for equipment that has already been ordered or the expansion of
facilities or parking that has already begun, except where such expansion is deemed necessary to provide adequate fire,
rescue and emergency medical and technical emergency response services to the surrounding community by the Delaware
Council on Volunteer Fire Service. The Fund shall serve as a revolving loan account and shall be eligible to receive loan
repayments. The Fund shall be deemed a special fund and shall be approved by the Governor for the following purposes:

(1) To accept and retain the funds and revenues appropriated by the General ~~Assembly;~~ Assembly,
received from any county of the State, or donated by any person or charitable organization.

(2) To make loans to eligible volunteer fire, ~~reseue~~ rescue, and emergency medical service companies
meeting the criteria established ~~herein;~~ under this section.

- 20 (3) To buy or refinance debt obligations of eligible volunteer fire, ~~rescue~~ rescue, and emergency medical
21 service ~~companies~~; companies.
- 22 (4) To facilitate the pledging by an eligible fire, ~~rescue~~ rescue, and emergency medical service company
23 of its state grant-in-aid and health insurance rebate funds as collateral for securing a loan from the ~~Fund~~; Fund.
- 24 (5) To earn interest on amounts on deposit in such ~~Fund~~; Fund.
- 25 (6) To establish all necessary interest bearing accounts for deposit of loan ~~repayments~~; and repayments.
- 26 (7) To finance the reasonable costs incurred by the State in the administration of the Fund.
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SYNOPSIS

Currently, the Delaware Volunteer Fire Service Revolving Loan Fund may only obtain funding from the General Assembly through appropriation. This Act would allow for funding and donations to be made by any person, charitable organizations, and counties of the State. When a county contributes to the Fund, the Act requires the Fund ensure county specific contributions are spent on loans to fire companies within that county.

This Act also makes technical corrections to conform existing law to the standards of the Delaware legislative Drafting Manual.

Author: Senator Huxtable